

Authority for Personal Data
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The Minister of VWS

P.O. Box 20350

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Date

June 8, 2022

Our reference

z2022-2286

Your letter of

April 7, 2022

Your reference

1027414-3348632-CZ

Subject

Amendment of the Implementation Regulation Wkkgz (LADIS/LTR)

Dear Mr. Kuipers,

In a letter dated April 7, 2022, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR), regarding the draft amendment of the Implementation Regulation Wkkgz in relation to the security of data and the method of pseudonymization for the purpose of registrations to promote the quality and safety of healthcare (hereinafter: the draft).

Since the GDPR is directly applicable, the national legislator cannot determine that compliance with Article 5, first paragraph, part f, of the GDPR is automatically achieved by applying the NEN 7510 standards. The AP has objections regarding this point and advises not to continue the procedure unless the objection is removed.

Scope of the draft

The advisory request concerns the amendment of the Implementation Regulation Act on Quality, Complaints, and Disputes in Healthcare in relation to the security of data and the method of pseudonymization for the purpose of the National Alcohol and Drugs Information System (LADIS) and the National Trauma Registration (LTR).

For the processing of personal data - including health data - concerning LADIS and LTR, a legal basis is created in the Act on Quality, Complaints, and Disputes in Healthcare (Wkkgz).^{1 2} For this processing, pseudonymization is prescribed.³ In the Wkkgz, a delegation basis is included to determine in lower regulations which data are to be provided, how this data is to be provided and processed, what safeguards must be provided during processing, and what the retention period of the data is.⁴ In Articles 4.4 and 4.8 of the Implementation Decree Wkkgz⁵, the method of pseudonymization and the manner in which personal data are secured are delegated to the level of a ministerial regulation. These two subjects are regulated in this draft.

Advice

Article 7a of the Implementation Regulation Wkkgz states that compliance with Article 5, first paragraph, part f, of the GDPR (appropriate security) is in any case achieved if the data provided by the healthcare provider to LADIS or LTR is processed in accordance with NEN 7510-1 and NEN 7510-2, or in a comparable manner.

The GDPR is a European regulation and is therefore directly applicable in every member state of the European Union. While Article 6, second paragraph, of the GDPR provides some leeway to specify

certain standards from the GDPR for processing based on Article 6, first paragraph, parts c and e, this does not extend so far as to allow national legislation to determine in which cases or under what conditions compliance with Article 5, first paragraph, part f, of the GDPR is or is not achieved. Fixing security requirements in this manner also disregards that security must always be state of the art.⁶

The AP advises to delete Article 7a. Alternatively, it may be considered to encourage the application of NEN 7510-1 and NEN 7510-2 for these processes in another way.

Disclosure of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to be informed of the expected time of disclosure as soon as this is known.

Yours sincerely,
Authority for Personal Data,

Aleid Wolfsen
Chairman

3 Articles 30a, third paragraph, and 30b, fourth paragraph, Wkkgz.

4 Articles 30a, fourth paragraph, and 30b, sixth paragraph, Wkkgz.

5 The AP advised on this on July 16, 2021 (z2021-13260; no comments).

6 See also Article 32, first paragraph, GDPR: “taking into account the state of the art.”